

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

John R. Gaskey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve energy grid resiliency throughout the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>4/30/2025</i>

HOUSE No.

By Representative Gaskey of Carver, a petition (subject to Joint Rule 12) of John R. Gaskey relative to solar photovoltaic system disconnection, recycling and battery storage. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve energy grid resiliency throughout the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1: Chapter 164 of the General Laws is hereby amended by inserting the following
2 new section after section 148:

3 Section 149: (a) Notwithstanding any general or special law to the contrary, a homeowner
4 in the commonwealth who owns and operates a solar photovoltaic system located on their
5 residential property or on any buildings located on their property shall have the right to
6 disconnect (go off-grid) their property entirely from the electric distribution system operated by
7 an electric distribution company (EDC), and use their solar production for their own personal
8 purposes provided that the homeowner complies with the requirements set forth in this section.

9 (b) Any homeowner seeking to disconnect their property from the electric distribution
10 system pursuant to this section shall submit a written notice to the EDC serving their area at
11 least ninety (90) days prior to the intended date of disconnection from the EDC grid. The notice
12 shall include:

NOTE: Registration of system as a production unit with MassCEC meets the requirement listed in sections 1, 2, and 3.

(1) Documentation demonstrating the homeowner's ownership of the solar photovoltaic system and the property. (2) A detailed description of the solar photovoltaic system, including its capacity, any energy storage systems (batteries), and any backup generation systems. (3) A certification from a licensed electrical contractor in the commonwealth affirming that the solar photovoltaic system, including any energy storage and backup generation, has been installed and is operating safely and in compliance with all applicable electrical codes and safety standards. (4) Written notification shall include online notification designed by and setup on EDC website and connected to the database of power generation systems maintained by MASSCEC. The homeowners written or oral date of disconnection shall serve as notice to the EDC that all energy produced on homeowners property as of that date belongs solely to the homeowner. Any meter locks, disconnection switches or other physical or mechanical responsibilities to ensure disconnection from the energy distribution system that is not within the control of the homeowner shall be the responsibility of the EDC to disconnect said homeowner.

(c) An EDC shall not impose any fees, charges, or penalties solely as a result of a homeowner disconnecting their property from the electric distribution system pursuant to this section. However, nothing in this section shall prevent an electric distribution company from assessing a reconnection fee equivalent to a new customer connection fee, if one exists, for reconnection to the grid at a future date, should the homeowner choose to do so.

(e) Nothing in this section shall relieve a homeowner who has disconnected from the electric distribution system from complying with all other applicable state and local laws,

regulations, and ordinances, including but not limited to building codes, environmental regulations, and zoning bylaws.

Chapter 164 of the General Laws is hereby further amended by inserting the following new section after section 149:

Section 150: Statewide Renewable Energy System Recycling Program

(a) There is hereby established a statewide Renewable Energy System Recycling Program (the “Program”), to be administered by the Department of Environmental Protection (the “Department”). The purpose of the Program is to facilitate the responsible collection, processing, and recycling of all components of solar photovoltaic systems and other renewable energy systems used in the commonwealth which includes but is not limited to solar panels, battery storage systems, wind energy devices, associated mounting hardware and electronic components of said energy system.

(b) The Department shall, within 6 months of the effective date of this act, develop and implement a comprehensive plan for the Program, which shall include, but not be limited to:

(1) The facilitation of the creation of one or more designated Renewable Energy Recycling Centers strategically located throughout the commonwealth and available at low or no cost to the general population. The Department's role shall include, but not be limited to, identifying potential locations, providing guidance on permitting processes, and offering resources to encourage private sector investment in these centers. These centers shall be privately owned and operated and shall be equipped to safely and efficiently dismantle, separate, and process the various materials found in renewable energy systems, including but not limited to silicon, glass, aluminum, cadmium, lead, cobalt, copper, fiberglass, and plastics. Any potential

57 areas for these centers will require compliance with federal CERCLA and safe drinking water act
58 as well as the Commonwealth's Chapter 21E standards such as ensuring all areas are lined in
59 accordance with hazardous waste disposal system regulations before accumulating renewable
60 energy system waste to prevent leaching into the groundwater. At no time shall earth be
61 removed for commercial sale at any of these sites.

62 (2) The development of best practices and environmental standards for the handling,
63 transportation, processing, and recycling of solar photovoltaic system components, ensuring the
64 safe and environmentally sound management of any hazardous materials. These standards shall
65 apply to all privately owned and operated Solar System Recycling Centers participating in the
66 program.

67 (3) The establishment of a funding mechanism for the Program, which may include a
68 surcharge on the sale or installation of new solar photovoltaic systems within the commonwealth,
69 appropriations from the general fund, grants, or other sources deemed appropriate by the
70 Department; however, no fees will be taken from owners/lessees of installations at the time of
71 passing. Additionally, all incentives to renewable energy companies looking to do business in the
72 commonwealth will cease immediately and will be used to alleviate financial burdens that have
73 been previously placed on the citizens of the commonwealth. This funding may be used to
74 support the Department's facilitation efforts and potentially provide incentives or grants to
75 privately owned Recycling Centers that meet the Program's standards, as well as providing
76 financial assistance for the remediation of any future contamination of the land or surrounding
77 groundwater, ponds, lakes, or private wells.

(4) The development of a system for the collection of end-of-life solar photovoltaic systems from homeowners, businesses, and other entities, which may include establishing collection points, coordinating with solar installers or manufacturers, or other effective methods for transfer to the privately owned Recycling Centers.

(5) The creation of public awareness and education initiatives to inform consumers and businesses about the importance of Renewable energy system recycling and the procedures for participating in the Program, including directing end-of-life systems to the Recycling Centers. These classes will be provided by the renewable energy installation companies with support from the DPU.

(6) The establishment of reporting requirements for the privately owned Recycling Centers and other entities involved in the Program to track the volume and types of materials recycled.

(7) The exploration of partnerships with private sector entities with expertise in materials recycling and recovery to enhance the efficiency and effectiveness of the Program through these privately owned centers.

(8) The consideration of policies to encourage the design of solar photovoltaic systems that are more easily recyclable by private facilities.

(c) The Department shall have the authority to promulgate rules and regulations necessary to implement and administer the Program, including but not limited to establishing operational standards for privately owned Recycling Centers, setting collection procedures, determining funding mechanisms, and establishing reporting requirements.

(d) Nothing in this section shall preclude private entities from establishing their own solar photovoltaic system recycling facilities, provided that such facilities comply with all applicable state and federal environmental laws and regulations, and any specific requirements established by the Department under the Program. The Department may establish a certification process for private recycling facilities that meet the standards of the statewide Program.

Chapter 164 of the General Laws is hereby further amended by inserting the following new section after section 150:

Section 151: (a) Battery Storage Program for Existing Solar Homeowners:

(1) The Department of Energy Resources (the “Department of Energy Resources”) shall, within six months of the effective date of this act, establish a program to facilitate the adoption of battery storage systems by existing owners of residential solar photovoltaic systems in the commonwealth (the “Battery Storage Program”). (2) The Battery Storage Program shall explore mechanisms to make battery storage more accessible and affordable for existing solar homeowners, which may include, but not be limited to: (i) Financial incentives, such as rebates, tax credits, or low-interest loans, for the purchase and installation of qualified battery storage systems. (ii) Partnerships with electric distribution companies to offer streamlined interconnection processes and potential grid services agreements for homeowners with battery storage. (iii) Educational outreach and technical assistance to inform homeowners about the benefits and options for battery storage. (3) Electric distribution companies in the commonwealth will develop and offer battery storage solutions or programs to their existing residential renewable energy customers, potentially through direct provision, partnerships with storage

providers, or innovative financing models, subject to review and approval by the Department of Public Utilities.

(b) Battery Storage Requirement for Future Solar Installations:

(1) Commencing after the effective date of this act, all new residential solar photovoltaic systems installed in the commonwealth shall be designed to include on-site battery storage with a minimum capacity as determined by a homeowner approved qualified renewable energy installer based on historical usage at the location of the installation. This requirement shall apply to all permit applications for new residential renewable energy installations submitted on or after that date to facilitate off-grid requirements. In the case of new residential construction where no energy use data has been collected, neighborhood comparisons will be used to establish baseline energy requirements for the design of a renewable energy system.

(c) Grid Services and Incentives:

(1) The Department of Public Utilities shall investigate and, where appropriate, implement mechanisms to allow homeowners with battery storage systems to participate in grid services programs, such as demand response or frequency regulation, and to be financially compensated fairly for providing these services to the electric grid. (2) The Department of Energy Resources shall explore additional incentives or programs to encourage the use of battery storage to enhance grid resilience, reduce peak demand, and maximize the use of locally generated solar energy.